



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 12 judgments on Tuesday 20 March 2018 and 25 judgments and / or decisions on Thursday 22 March 2018.

*Press releases and texts of the judgments and decisions will be available at **10 a.m.** (local time) on the Court's Internet site (www.echr.coe.int)*

Tuesday 20 March 2018

[Falzon v. Malta \(application no. 45791/13\)](#)

The applicant, Michael Falzon, is a Maltese national who was born in 1945 and lives in Naxxar (Malta).

The case concerns his complaint about being found guilty of libel after writing an opinion piece which criticised a parliament.

The applicant is a former member of parliament and Government minister. He wrote an opinion piece in *Maltatoday* in May 2007 about the fact that an MP, also called Michael Falzon, had personally asked the Commissioner of Police to investigate an allegedly threatening email he had received. Mr Falzon began defamation proceedings, which he won, and the applicant was ordered to pay 2,500 euros in damages. Appeals by the applicant were dismissed, ultimately by the Constitutional Court in January 2013.

Relying on Article 10 (freedom of expression) of the European Convention on Human Rights, the applicant complains that the courts failed to distinguish between facts and value judgments and submits that his criticism was directed towards a politician and concerned a matter of public interest.

[Igranov and Others v. Russia \(nos. 42399/13, 24051/14, 36747/14, 60710/14, 3741/15, 7615/15, 24303/15, 24307/15 and 24605/15\)](#)

The applicants are nine Russian nationals who were born between 1965 and 1983 respectively.

The case concerns the fact that the applicants, who were detained at the time, could not attend court hearings for civil claims they had made related to their imprisonment.

The applicants were not allowed to attend the hearings as the domestic courts ruled in most of their cases that there was no legal provision for taking detainees to court. The courts also noted that the applicants had been able to make written submissions and retain counsel to represent them. The applicants' civil claims, which mainly concerned complaints about their conditions of detention, unlawful prosecution or lack of proper medical care, were all dismissed at first-instance and on appeal.

The applicants – Dmitriy Igranov, Yuriy Zhundo, Dmitriy Khvorostyanoy, Igor Kuznetsov, Sergey Siverkov, Anton Sulimov, Andrey Resin, Sergey Malygin and Dmitriy Lupanskiy – rely in their complaint on Article 6 § 1 (right to a fair hearing).

Tkachenko v. Russia (no. 28046/05)

The applicants, Mikhail Tkachenko, Nina Tkachenko, Aleksandr Tkachenko, and Nataliya Tkachenko, are Russian nationals who were born in 1964, 1966, 1985, and 1989 and live in Aksay, in the Rostov-on-Don region (Russia), (including Nina Tkachenko, who died in 2011).

The case concerns expropriation proceedings in respect of the applicants' house.

In 2004 the Aksay District Court granted an action by a private investor who sought to bring an end to the applicants' property right to the part of the house occupied by them, to evict them and to confer on them the ownership of another house, bought by this investor for that purpose. This judgment was upheld on appeal in 2005 and in the same year the applicants were evicted and installed in their new accommodation. Their house was demolished in the same year and a ten-storey building was subsequently erected on the site.

Relying on Article 1 of Protocol No. 1 (protection of property) to the Convention and Article 8 (right to respect for private and family life and the home), the applicants allege that the expropriation proceedings provided for in Russian law were totally flouted and that their eviction and the demolition of their home was an arbitrary measure.

Altan v. Turkey (no. 13237/17) and Alpay v. Turkey (no. 16538/17)

The applicants, Mehmet Hasan Altan (application no. 13237/17) and Şahin Alpay (application no. 16538/17), are Turkish nationals who were born in 1953 and 1944 respectively. They are currently in detention in Istanbul (Turkey).

The cases concern the pre-trial detention of two journalists following the attempted military coup of 15 July 2016.

Mr Altan (application no. 13237/17) is an economics professor and a journalist. Prior to the attempted military coup of 15 July 2016, he presented a political discussion programme on Can Erzinçan TV, a television channel that was closed down following the adoption of Legislative Decree no. 668, issued on 27 July 2016.

In the course of a criminal investigation relating to suspected members of FETÖ/PDY ("Gülenist Terror Organisation/Parallel State Structure"), Mr Altan was arrested on 10 September 2016 and taken into police custody on suspicion of having links to the organisation's media wing. On 22 September 2016 he appeared before the Istanbul 10th Magistrate's Court and was placed in pre-trial detention. On various dates Mr Altan applied without success to be released pending trial. On 14 April 2017 the Istanbul public prosecutor filed an indictment with the Istanbul Assize Court in respect of several individuals including Mr Altan, in particular accusing them, under Articles 309, 311 and 312 in conjunction with Article 220 § 6 of the Criminal Code, of attempting to overthrow the constitutional order, the Turkish Grand National Assembly and the government by force and violence, and of committing offences on behalf of a terrorist organisation without being members of it.

On 8 November 2016 Mr Altan lodged an individual application with the Constitutional Court. On 11 January 2018 the Constitutional Court gave judgment, holding that there had been a violation of the right to liberty and security and the right to freedom of expression and of the press. Despite the Constitutional Court's judgment, the Istanbul Assize Court rejected Mr Altan's subsequent application for release.

On 16 February 2018 the Istanbul 26th Assize Court sentenced Mr Altan to aggravated life imprisonment for attempting to overthrow the constitutional order.

Mr Altan relies on Article 5 §§ 1, 3, 4 and 5 (right to liberty and security) and Articles 10 (freedom of expression), 17 (prohibition of abuse of rights) and 18 (limitation on use of restriction of rights) in conjunction with Articles 5 and 10 of the European Convention on Human Rights.

Mr Alpay (application no. 16538/17) is a journalist who had been working since 2002 for the daily newspaper *Zaman*, which was viewed as the principal publication medium of the “Gülenist” network and was closed down following the adoption of Legislative Decree no. 668. He also lectured on comparative politics and Turkish political history at a private university in Istanbul.

On 27 July 2016 Mr Alpay was arrested at his home and taken into police custody on suspicion of being a member of the terrorist organisation FETÖ/PDY. On 30 July 2016 he was brought before the Istanbul 4th Magistrate’s Court and placed in pre-trial detention on the grounds that articles by him had promoted the terrorist organisation in question. Applications for Mr Alpay’s release were rejected. On 10 April 2017 the Istanbul public prosecutor filed an indictment with the Istanbul Assize Court in respect of several individuals suspected of being part of the FETÖ/PDY media wing, including Mr Alpay, in particular accusing them, under Articles 309, 311 and 312 in conjunction with Article 220 § 6 of the Criminal Code, of attempting to overthrow the constitutional order, the Turkish Grand National Assembly and the government by force and violence, and of committing offences on behalf of a terrorist organisation without being a member of it.

On 8 September 2016 Mr Alpay lodged an individual application with the Constitutional Court. On 11 January 2018 the Constitutional Court gave judgment, holding that there had been a violation of the right to liberty and security and the right to freedom of expression and of the press. Despite the Constitutional Court’s judgment, the Istanbul Assize Court rejected Mr Alpay’s subsequent application for release.

Criminal proceedings against Mr Alpay are currently pending before the Istanbul 13th Assize Court.

Mr Alpay relies on Article 5 §§ 1, 3, 4 and 5 (right to liberty and security) and Articles 10 (freedom of expression) and 18 (limitation on use of restriction of rights) of the Convention.

[Uzan v. Turkey \(no. 30569/09\)](#)

The applicant, Cem Cengiz Uzan, is a Turkish national who was born in 1960. He is a businessman. At the relevant time he was president of a political party (Genç Parti – the Yellow Party), and lived in Istanbul (Turkey).

The case concerns criminal proceedings in respect of Mr Uzan’s conviction for insulting the then Prime Minister (Recep Tayyip Erdoğan) in the course of a public speech given in June 2003 in the city of Bursa (Turkey).

In September 2008 Mr Uzan was sentenced to eight months’ imprisonment and fined approximately 404 euros (EUR). However, the judge decided to suspend delivery of the judgment, subject to the condition that the applicant submit to judicial supervision for five years. One of those years was to be under the supervision of a counsellor who would ensure that Mr Uzan took part in a self-management programme for three months and that he read five books on personal development. In October 2009 the office responsible for overseeing judicial supervision informed the bureau for the execution of sentences that the applicant was no longer cooperating with its employees; the criminal proceedings were reopened. In the meantime, Mr Uzan had allegedly left the country and submitted a request for political asylum to the French authorities.

Relying on Article 10 (freedom of expression), Mr Uzan complains about his conviction, considering that his speech was given in the context of political debate. Under Article 6 § 1 (right to a fair trial within a reasonable time), he complains about the length of the proceedings before the criminal courts.

Revision

[Ireland v. the United Kingdom \(no. 5310/71\)](#)

The applicant is the Government of Ireland and the respondent is the United Kingdom.

The case concerns Ireland's request to revise a 1978 judgment so as to find that a group of men suffered torture at the hands of the British authorities during the troubles in Northern Ireland.

The men were detained under emergency powers in 1971. They were subjected to five interrogation techniques of being made to stand in a strained, spread-eagled position against a wall; being deprived of food and sleep; being hooded; and being subjected to white noise.

The Court in 1978 found that the men's treatment had amounted to inhuman and degrading treatment, but not torture. Ireland alleges that new evidence has come to light, namely formerly classified documents that have been released into the United Kingdom's public archives, which if known at the time would have led to a finding of torture as well.

Ireland has made its revision request under Rule 80 of the Rules of Court. It allows a party to make such a request "in the event of the discovery of a fact which might by its nature have a decisive influence and which, when a judgment was delivered, was unknown to the Court and could not reasonably have been known to that party".

The revision request and the original judgment are under Article 3 (prohibition of torture and inhuman or degrading treatment).

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Montemlin Šajo v. Montenegro (no. 61976/10)

Novaković and Others v. Montenegro (no. 44143/11)

Lebedev v. Russia (no. 6705/07)

Malimonenko v. Russia (no. 46580/08)

Öztop and Others v. Turkey (nos. 43587/07, 11324/08, 20574/08, 26817/08, 4762/09, 4770/09, 34055/11, and 69680/11)

Thursday 22 March 2018

[Tlapak and Others v. Germany](#) (nos. 11308/16 and 11344/16)

[Wetjen and Others v. Germany](#) (nos. 68125/14 and 72204/14)

The cases concern the partial withdrawal of parental authority and taking into care of children belonging to the Twelve Tribes Church (*Zwölf Stämme*), living in two communities in Bavaria (Germany).

In 2012 the press reported that members of the Twelve Tribes Church punished their children by caning. The reports were subsequently corroborated by video footage of caning filmed with a hidden camera in one of the communities. As a result, in September 2013, at the request of the local child welfare service, the courts ordered that the children living in the communities, including the applicant families' children, be taken into care. They based their decisions on the press reports as well as statements by former members of the church.

The applicants in the first case are the parents of the Tlapak and Pinggen families, who resided previously in the Wörnitz community. The applicants in the second case are the parents and children of the Wetjen and Schott families, who used to live together in the Klosterzimmern community.

Relying in particular on Article 8 (right to respect for private and family life), the applicants complain about the proceedings to partly withdraw parental authority and the splitting up of their families. They also allege that the proceedings were unreasonably long.

Benli v. Turkey (no. 32471/06)

The applicant, Mr Mustafa Benli, is a Turkish national who was born in 1971 and lives in Istanbul (Turkey).

The case concerns the lawfulness of successive periods spent in detention by Mr Benli.

In 1999 Mr Benli was sentenced to more than 12 years' imprisonment on the basis of Article 168 of the former Criminal Code (former CC), which punished membership of an armed organisation. In October 2004 he applied for a more lenient sentence, in accordance with the provisions of Article 314 of the new Criminal Code (new CC), passed by the Turkish Parliament in September 2004.

On 19 November 2004 Mr Benli was released as the assize court had reviewed his sentence. On the same date, after having left the prison, Mr Benli was returned to the gendarmes' custody on the grounds that four arrest warrants had previously been issued against him. However, he was released on 21 November 2004, as the authorities had noted that the warrants in question were no longer valid and that Mr Benli was no longer being sought. Mr Benli was subsequently arrested on two further occasions, on 7 and 8 December 2004, for several hours. On each occasion he was released on the same day after the authorities noted that, as a result of an error, the arrest warrants had not been removed from the police records.

Relying on Article 5 § 1 (right to liberty and security), Mr Benli, who was released on 19 November 2004, submits that he ought to have been released on 26 September 2004 (the date on which the new CC was adopted) or at the latest on 13 November 2004 (the date of publication in the Official Gazette of Law no. 5252 governing the arrangements for the entry into force and implementation of the new CC). Under the same article, Mr Benli complains, firstly, that he was taken to the gendarmerie headquarters on 19 November 2004 and not released until 21 November 2004, and, secondly, that he was detained on 7 and 8 December 2004 on account of an omission on the part of the domestic authorities.

Relying on Articles 5 § 4 (right to speedy review of the lawfulness of detention) and 13 (right to an effective remedy), he complains that there was no domestic remedy to enable him to assert his right to liberty and security.

Relying on Article 6 § 1 (right to a fair trial), he alleges that the assize court was not independent and impartial.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

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Lüütsepp v. Estonia (no. 46069/13)

V.S. v. Estonia (no. 8685/15)

Colesnic v. the Republic of Moldova (no. 76240/12)

Godniuc v. the Republic of Moldova (no. 16997/15)

Hodorogea v. the Republic of Moldova (no. 59527/15)

Morozan v. the Republic of Moldova (no. 67626/13)

Red Union Fenosa S.A. v. the Republic of Moldova (no. 40738/10)

Societatea Scriitorilor Români din Moldova and Others v. the Republic of Moldova (no. 4470/08)

AS Dagbladet v. Norway (no. 60715/14)

Avisa Nordland AS v. Norway (no. 30563/15)

Chumakov v. Russia (no. 3619/06)

Yelisseyevy v. Russia (no. 42021/13)

Zhitkov v. Russia (no. 51101/06)

Baysöz and Others v. Turkey (no. 33156/12)
Dindar v. Turkey (no. 13077/13)
Erol v. Turkey (no. 18111/11)
Ersoy v. Turkey (no. 70479/11)
Kaldırımoglu Kollektif Şti. v. Turkey (no. 48603/09)
Özer and Others v. Turkey (no. 67457/09)
Parıltı and Aksel v. Turkey (nos. 57357/08 and 57371/08)
Charnomskyy and Others v. Ukraine (nos. 13417/16, 27550/16, 47301/16, 47485/16, 78136/16, 9040/17, 13616/17, and 23331/17)
Yalunin v. Ukraine (no. 10295/09)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.